



Public Service Vehicles (Arrest of Offenders) Act 1975

1975 CHAPTER 53

An Act to authorise the arrest without warrant of certain persons suspected of contravening regulations about the conduct of passengers in public service vehicles.
[1st August 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Arrest
without
warrant of
suspected
offenders.
1960 c. 16.
1870 c. 78.

1. If a constable suspects with reasonable cause that a person has contravened or failed to comply with a provision of regulations having effect by virtue of section 147 of the Road Traffic Act 1960 (which relates to the conduct of passengers in public service vehicles) or of byelaws made under section 46 of the Tramways Act 1870 with respect to the conduct of persons in tramcars, the constable may require the person to give his name and address to the constable; and if the person—

- (a) refuses to give his name and address to the constable; or
- (b) gives a name and address to the constable but does not answer to the satisfaction of the constable questions put to him by the constable for the purpose of ascertaining whether the name and address are correct,

the constable may arrest him without a warrant.

2.—(1) This Act may be cited as the Public Service Vehicles (Arrest of Offenders) Act 1975.

Short title,
repeal, com-
mencement
and extent.

(2) In subsection (1)(b) of the said section 147 (which provides that regulations under that section may make provision for requiring a passenger in a public service vehicle who is suspected of contravening the regulations to give his name and address to a police constable or to the driver or conductor) the words “to a police constable or” are hereby repealed.

(3) In the preceding section the words from “or of byelaws” to “tramcars” shall come into force on such date as the Secretary of State may appoint by order made by statutory instrument.

(4) This Act does not extend to Scotland and Northern Ireland.